

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
GAIL R. COGHLAN) Docket No. MH04-0407
License No. 068-0000177)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, through State Prosecuting Attorney, Edward G. Adrian, and Respondent, Gail R. Coghlan, LCMHC, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.

Statement of Facts

2. Gail Ryan Coghlan (the "Respondent") of East Dorset, Vermont is a licensed clinical mental health counselor holding license number 068-0000177, issued by the State of Vermont. This license was originally issued on or about December 16, 1993 and is set to expire on January 31, 2009.

3. During all relevant times the Respondent was practicing as a licensed clinical mental health counselor at Psychiatry and Psychotherapy Associates (the "Facility") in Rutland, Vermont.

4. On or about April 10, 2006, the Respondent was convicted of Driving While Under the Influence, 3rd Offense. This is a felony conviction. The Respondent failed to notify the Office of Professional Regulation of this conviction within 30 days.

5. Investigation revealed that between August 8, 2005 and January 8, 2006, 3,000 tablets of Lorazepam 2mg and 1,500 tablets of Lorazepam, 1 mg and 100 tablets of Hydrocodone were shipped to the offices of Dr. Alban Coghlan in Rutland, Vermont. Dr. Coghlan is the husband of the Respondent and is a psychiatrist. On or about March 28, 2007 the officer manager for Dr. Coghlan, M.S. advised Investigator Barney that Dr. Coghlan's office does not order either Lorazepam or Hydrocodone in the regular course of business

6. In an interview on or about March 28, 2007 Dr. Coghlan indicated that he had ordered the Hydrocodone for himself, but that the Respondent had ordered the Lorazepam and that she

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had been suffering from drug and alcohol addiction for some time. On or about the same date, the Respondent admitted to Investigator Barney that the Respondent had been ordering the Lorazepam from the Henry Schein Corporation, had it sent to her husband's office, and had been diverting it for her own use.

7. On or about April 26, 2007, the Respondent admitted to Investigator Pamela Barney that the Respondent is an alcoholic and addicted to prescription medication.

8. On or about January 2, 2007 the Respondent answered "no" to the question on her renewal application for her license that states "Are you currently addicted to, or in any way dependent on, the use of alcohol or habit forming drugs?"

9. On or about June 21, 2007, the Board summarily suspended the Respondent's license.

Relief Requested

10. The above acts and circumstances, alone or in combination, violate:

- i. 3 V.S.A. § 129a(a)(1) (fraudulent or deceptive procurement or use of a license);
- ii. 3 V.S.A. § 129a(a) (3) (failing to comply with provisions of federal or state statutes or rules governing the practice of the profession);
- iii. 3 V.S.A. § 129a(a)(5) (practicing the profession when medically or psychologically unfit to do so);
- iv. 3 V.S.A. § 129a(a)(7) (willfully making or filing false reports or records in the practice of the profession);
- v. 3 V.S.A. § 129a(a)(11)(failing to report to the office a conviction of a felony or any offense related to the practice of the profession in a Vermont district court, a Vermont superior court, a federal court, or a court outside Vermont within 30 days); and
- vi. 26 V.S.A. § 3271(a)(3)(conduct which evidences unfitness to practice clinical mental health counseling).

Understandings

11. Respondent understands that the Allied Mental Health Practitioners Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.

12. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

13. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

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14. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.
15. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
16. Respondent voluntarily waives her right to a contested hearing before the Allied Mental Health Practitioners Board.
17. Respondent agrees that the Order set forth may be entered by the Board.

ORDER

Based upon the stipulation above, it is **ORDERED AND ADJUDGED** by the Board of Allied Mental Health Practitioners as follows:

A. Respondent, by her acts as set forth above, has engaged in unprofessional conduct pursuant to, and in violation of:

- i. 3 V.S.A. § 129a(a)(1) (fraudulent or deceptive procurement or use of a license);
- ii. 3 V.S.A. § 129a(a) (3) (failing to comply with provisions of federal or state statutes or rules governing the practice of the profession);
- iii. 3 V.S.A. § 129a(a)(5) (practicing the profession when medically or psychologically unfit to do so);
- iv. 3 V.S.A. § 129a(a)(7) (willfully making or filing false reports or records in the practice of the profession);
- v. 3 V.S.A. § 129a(a)(11)(failing to report to the office a conviction of a felony or any offense related to the practice of the profession in a Vermont district court, a Vermont superior court, a federal court, or a court outside Vermont within 30 days); and
- vi. 26 V.S.A. § 3271(a)(3)(conduct which evidences unfitness to practice clinical mental health counseling).

B. The Board of Allied Mental Health Practitioners hereby **INDEFINITELY SUSPENDS** the Respondent's license to practice as a clinical mental health counselor.

C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

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AGREED TO:

Dated: 8/20/07

STATE OF VERMONT
SECRETARY OF STATE

By: [Signature]
Edward G. Adrian
State Prosecuting Attorney

GAIL R. COGHLAN
RESPONDENT

Dated: Aug 16, 2007

By: Gail R Coghlan
Gail R. Coghlan

APPROVED AS TO FORM:

Dated: Aug. 16, 2007

ATTORNEY FOR RESPONDENT

By: [Signature]
James P. Carroll, Esq.

APPROVED AND SO ORDERED:
HEALTH PRACTITIONERS

VERMONT BOARD OF ALLIED MENTAL

Dated: 9/20/07

By: [Signature]
Chairperson

Date of Entry: 9/20/07

mh.coghlan.stip

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